

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**-----X
CLYDE MCGRAW AND DAQUAN CARRASCO,

Plaintiff

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER DAVID TERRELL, Shield # 016032**Defendants.
-----X

Index No. _____

Purchased _____

Plaintiff designates Bronx
County as the place of trialThe basis of the venue is
where the tort arose**SUMMONS****TO THE ABOVE NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
February 10, 2015
THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
115 East 57th Street, 11th Floor
New York, New York 10022
(212) 939-725115 FEB 13 PM 2:01
COUNTY CLERK
BRONX COUNTY

RECEIVED

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

-----X
CLYDE MCGRAW AND DAQUAN CARRASCO

Plaintiff,

**Index No.
Verified Complaint**

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER DAVID TERRELL, SHIELD # 016032**

Defendants.
-----X

Plaintiffs CLYDE MCGRAW and DAQUAN CARRASCO, by their attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff CLYDE MCGRAW was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, Plaintiff DAQUAN CARRASCO was a resident of Bronx County, City and State of New York.
3. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

4. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
5. At all times hereinafter mentioned, defendant POLICE OFFICER DAVID TERRELL, Shield # 016032 ("P.O. TERRELL") was and is a police officer employed by Defendants.

BACKGROUND

CLYDE MCGRAW:

6. On November 21, 2013, at approximately 1:00 p.m., inside of 166th Street and Franklin Avenue in Bronx County, State of New York, without just cause or provocation, P.O. TERRELL, a police officer with POLICE, approached CLYDE MCGRAW and handcuffed CLYDE MCGRAW.
7. Immediately thereafter, Defendants, including P.O. TERRELL, intentional placed CLYDE MCGRAW under arrest for the crime of Unlawful Assembly without just cause or provocation and with reckless and negligent disregard for the truth.
8. After unlawfully searching and arresting CLYDE MCGRAW, Defendants removed him to the 42nd Police Precinct, where he was forced to remain in a precinct holding cell.
9. Next, POLICE shackled CLYDE MCGRAW to other prisoners and drove CLYDE MCGRAW to Bronx Central Booking. CLYDE MCGRAW remained incarcerated at Bronx Central Booking until his release from custody at approximately 5:00 p.m. on November 22, 2013.
10. On November 22, 2013, the Bronx County District Attorney declined to prosecute CLYDE MCGRAW for any crime or offense.

PROCEDURAL POSTURE

11. On December 2, 2013, CLYDE MCGRAW served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
12. More than thirty days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.
13. A 50-H hearing has been held.
14. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
15. Plaintiff, CLYDE MCGRAW has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION FOR PLAINTIFF

CLYDE MCGRAW: FALSE IMPRISONMENT

16. Paragraphs 1-15 are incorporated by reference as fully set forth herein.
17. CLYDE MCGRAW was aware of his arrest and confinement as described in paragraphs 6-10, and he did not consent to that arrest or confinement.
18. Defendants intended to confine CLYDE MCGRAW and the confinement was not privileged or authorized by any warrant, order, or other legal right.
19. As a result of being falsely imprisoned by the Defendants, CLYDE MCGRAW sustained multiple injuries. He was denied liberty and he suffered emotional distress, humiliation and fear and intimidation for his safety.

BACKGROUND

DAQUAN CARRASCO

20. On November 21, 2013, at approximately 6:30 p.m., in vicinity of 164th Street and Washington Avenue in Bronx County, State of New York, without just cause or provocation, P.O. TERRELL, a police officer with POLICE, approached DAQUAN CARRASCO and handcuffed DAQUAN CARRASCO.
21. Immediately thereafter, Defendants, including P.O. TERRELL, intentional placed DAQUAN CARRASCO under arrest for the crime of Unlawful Assembly without just cause or provocation and with reckless and negligent disregard for the truth.
22. After unlawfully searching and arresting DAQUAN CARRASCO, Defendants removed him to the 42nd Police Precinct, where he was forced to remain in a precinct holding cell.
23. Next, POLICE shackled DAQUAN CARRASCO to other prisoners and drove him to Bronx Central Booking. DAQUAN CARRASCO remained incarcerated at Bronx Central Booking until his release from custody at approximately 5:00 p.m. on November 22, 2013.
24. On November 22, 2013, the Bronx County District Attorney declined to prosecute DAQUAN CARRASCO for any crime or offense.

PROCEDURAL POSTURE

25. On December 2, 2013, DAQUAN CARRASCO served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

26. More than thirty days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

27. A 50-H hearing has been held.

28. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.

29. Plaintiff, DAQUAN CARRASCO has duly complied with all conditions precedent to the commencement of this action.

SECOND CAUSE OF ACTION FOR PLAINTIFF

DAQUAN CARRASCO: FALSE IMPRISONMENT

30. Paragraphs 1-29 are incorporated by reference as fully set forth herein.

31. DAQUAN CARRASCO was aware of his arrest and confinement as described in paragraphs 20-24, and he did not consent to that arrest or confinement.

32. Defendants intended to confine DAQUAN CARRASCO and the confinement was not privileged or authorized by any warrant, order, or other legal right.

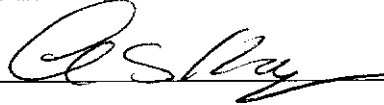
33. As a result of being falsely imprisoned by the Defendants, DAQUAN CARRASCO sustained multiple injuries. He was denied liberty and he suffered emotional distress, humiliation and fear and intimidation for his safety.

WHEREFORE, Plaintiffs demand judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY
February 10, 2015

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY

A handwritten signature in cursive script, appearing to read 'E. S. Kay', is written over a horizontal line.

BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff

115 East 57th Street, 11th Floor

New York, NY 10022

212-939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
CLYDE MCGRAW AND DAQUAN CARRASCO,

Plaintiff

-against-

**CITY OF NEW YORK, POLICE OFFICER
DAVID TERRELL, SHIED # 016032**

Defendants

Index No.

Purchased: _____

VERIFICATION

-----X
I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
February 10, 2015



ELLIOT S. KAY